

HOUSE BILL 1081

By Camper

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to expunction of certain
offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-32-101(g)(2)(B), is amended by deleting the subdivision and substituting instead:

(B) At the time of the filing of the petition for expunction at least:

(i) Three (3) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is a misdemeanor or Class E felony;

(ii) Six (6) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is a Class D felony; or

(iii) Ten (10) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is a Class C felony; and

SECTION 2. Tennessee Code Annotated, Section 40-32-101(k)(1)(C), is amended by deleting the subdivision and substituting:

(C) At the time of the filing of the petition for expunction at least:

(i) Three (3) years have elapsed since the completion of the sentence imposed for the most recent offense, if the offenses were both misdemeanors or a Class E felony and a misdemeanor;

(ii) Six (6) years have elapsed since the completion of the sentence imposed for the most recent offense, if one (1) of the offenses was a Class D felony; or

(iii) Ten (10) years have elapsed since the completion of the sentence imposed for the most recent offense, if one (1) of the offenses was a Class C felony;

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.